Changes to Legislation: as of 17 September 2026, this Act is up to date with all changes known to be in force.

Number 41 *of* 2022

ONLINE SAFETY AND MEDIA REGULATION ACT 2022

REVISED

Updated to 17 February 2024

This Revised Act is an administrative consolidation of the *Online Safety and Media Regulation Act 2022*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Coroners (Amendment) Act 2024* (4/2024), enacted 16 February 2024, and all statutory instruments up to and including the *Digital Services Act 2024 (Commencement) Order 2024* (S.I. No. 53 of 2024), made 16 February 2024, were considered in the preparation of this Revised Act.

Disclaimer: While every care has been taken in the preparation of this Revised Act, the Law Reform Commission can assume no responsibility for and give no guarantees, undertakings or warranties concerning the accuracy, completeness or up to date nature of the information provided and does not accept any liability whatsoever arising from any errors or omissions. Please notify any errors, omissions and comments by email to revisedacts@lawreform.ie.

Number 41 *of* 2022

ONLINE SAFETY AND MEDIA REGULATION ACT 2022

REVISED

Updated to 17 February 2024

An Act to amend the Broadcasting Act 2009 to provide for the establishment of a body to be known as Coimisiún na Meán; to provide for the implementation of Directive 2010/13/EU of the European Parliament and of the Council of 10 March 2010[1] as amended by Directive (EU) 2018/1808 of the European Parliament and of the Council of 14 November 2018[2] ; for the purpose of fulfilling the State's responsibilities under those Directives, or otherwise in the interests of the common good, to impose obligations on providers of broadcasting services and audiovisual on-demand media services, and to provide for the regulation of content available on relevant online services and harmful online content available on designated online services; to enable authorised officers of Coimisiún na Meán to carry out investigations for the purposes of ensuring compliance with obligations imposed on persons by or under this Act; to provide for sanctions to be imposed on persons for failure to comply with obligations imposed by or under this Act, including to enable Coimisiún na Meán to impose administrative financial sanctions on providers of broadcasting services, audiovisual on-demand media services and designated online services for failure to comply with such obligations; to enable Coimisiún na Meán, for the purpose of meeting its expenses and its working capital requirements, to impose a levy on providers of broadcasting services, audiovisual on-demand media services and designated online services; to establish a register of providers of audiovisual on-demand media services; to enable Coimisiún na Meán to impose a levy on providers of audiovisual media services for the purposes of funding a scheme to support the production of European works; to enable Coimisiún na Meán to prepare a scheme for the provision of funds to local sound broadcasters and community broadcasters for the support of good professional journalistic practices; to provide for the dissolution of the Broadcasting Authority of Ireland and the transfer of its functions to Coimisiún na Meán; to otherwise amend and extend the Broadcasting Act 2009; to provide for the consequential amendment of certain other enactments; and to provide for related matters.

[10*th December*, 2022]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

[1] OJ No. L95, 15.4.2010, p.1

[2] OJ No. L303, 28.11.2018, p.69

Short title, collective citation and commencement

1. (1) This Act may be cited as the Online Safety and Media Regulation Act 2022.

(2) The Principal Act and this Act, in so far as it amends the Principal Act, may be cited as the Broadcasting and Other Media Regulation Acts 2009 and 2022.

(3) This Act shall come into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

Definitions

2. In this Act—

"Authority" means the Broadcasting Authority of Ireland;

"Commission" means Coimisiún na Meán established under section 6 of the Principal Act as inserted by *section 8*;

"Compliance Committee" means the Compliance Committee established by section 6 of the Principal Act as that section had effect immediately before the date of coming into operation of *section 8*;

"Contract Awards Committee" means the Contract Awards Committee established by section 6 of the Principal Act as that section had effect immediately before the date of coming into operation of *section 8*;

"establishment day" means the establishment day appointed under section 5 of the Principal Act as substituted by *section 8*;

"Minister" means the Minister for Tourism, Culture, Arts, Gaeltacht, Sport and Media;

"Principal Act" means the Broadcasting Act 2009;

"statutory committees" means the Contract Awards Committee and the Compliance Committee.

PART 2

Amendment of Part 1 of Principal Act

Amendment of section 2 of Principal Act

3. (1) Section 2 of the Principal Act is amended by renumbering the existing section as subsection (1).

(2) Subsection (1), renumbered under *subsection (1)*, of section 2 of the Principal Act is amended—

(a) by the insertion of the following definitions after the definition of "Act of 2001":

"'advertisement' includes a commercial communication;

'audiovisual broadcasting service' means an audiovisual media service provided for simultaneous or near-simultaneous viewing of audiovisual programmes on the basis of a programme schedule;